COMMERCE
Economic Development Corporation

AGENDA
BOARD OF DIRECTORS MEETING
THURSDAY, MAY 26, 2022
9:00 A.M.
COMMERCE CITY HALL
1119 ALAMO STREET
COMMERCE, TX 75428

: SCOTT WARD – PRESIDENT
: CECE GASSNER, J.D. – VICE-PRESIDENT
: MICHAEL GLAS – SECRETARY/TREASURER
: MANDY FREEMAN – MEMBER
: DAN LUCKETT – MEMBER
: STAN MCKEE – MEMBER
: JOE SHIPMAN – MEMBER

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1. Call to Order
2. Introduction and Welcome of Guests
3. Consider Approval of the Minutes of the Regular Meeting on April 27, 2022
4. Discuss and Consider Approval of the Financial Reports Ending April 30, 2022
5. Date and Time for Upcoming Meeting(s)
6. Comments and Reports
   a. Citizens' Comments [Citizens will be allotted three (3) minutes to comment or speak to the board.]
   b. City Manager
   c. Legal Counsel
   d. Ex-Officio Member(s)
   e. Board Members
   f. Executive Director
7. Executive Session [The CEDC Board of Directors will adjourn into executive session in accordance with the Texas government Code, Sections 551.071; 551.072; 551.074 and 551.087].
   Project Gray Wolf; Revolving Loans
   a. Section 551.071 – consultation with attorney
   b. Section 551.072 – deliberations regarding real property; land/building
   c. Section 551.074 – personnel matters
   d. Section 551.087 – deliberations regarding economic development negotiations
8. Reconvene to Open Session
9. Announcement of Executive Session [The Board will announce any action to be taken resulting from executive session.]
10. Adjournment

The CEDC Board of Directors reserve the right to enter closed Session at any point in this meeting in accordance with the following Texas Government Codes: Section 551.071 – consultation with attorney; Section 551.072 – deliberations about real property; Section 551.074 – personnel matters; and Section 551.087 – deliberation regarding economic development negotiations.

CERTIFICATION

I, Bonnie Hunter, Executive Director for the Commerce Economic Development Corporation, hereby certify that the above notice of meeting was posted on the bulletin board at Commerce City Hall, 1119 Alamo Street, Commerce, Texas on or before 8:30 a.m. May 23, 2022.

Bonnie Hunter

Bonnie Hunter, Executive Director

Commerce City Hall is wheelchair accessible; accessible parking spaces are available.

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 1 / SUBJECT: Call to Order

BACKGROUND: The Board President will call the meeting to order and announce if a quorum is present.

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: None

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 2 / SUBJECT: Welcome and Introduction of Guests

BACKGROUND: At this time, the Executive Director will welcome and make introductions of any guests.

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: None

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 3 / SUBJECT: Consider Approval of the Minutes of the Regular Meeting on April 27, 2022

BACKGROUND: Minutes from the Regular Meeting of April 27, 2022 are provided for your review.

DISCUSSION/CONCLUSION:

RECOMMENDATION: Approve the minutes from the April 27, 2022 meeting as presented.

FINANCIAL CERTIFICATION: None

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: Minutes of April 27, 2022

MINUTES
COMMERCE ECONOMIC DEVELOPMENT CORPORATION
REGULAR MEETING

April 27, 2022 – 9:00 a.m.

MEMBERS PRESENT: Scott Ward, President
Michael Glas - Secretary/Treasurer
Mandy Freeman-Member
Stan McKee-Member
Joe Shipman-Member
Bonnie Hunter, Executive Director

BOARD MEMBERS ABSENT: Cece Gassner, J.D. - Vice President
Dan Luckett-Member

EX-OFFICIO MEMBERS PRESENT: None

STAFF PRESENT: Howdy Lisenbee, City Manager
Molly Jacobsen, Director of Administrative Services

OTHERS PRESENT: Edgar J. Garrett, Attorney

1. **Call to Order:**
President Scott Ward called the meeting to order at 9:02 a.m.

2. **Consider Approval of the Minutes of the Regular Meeting on January 25, 2022.**
Stan McKee made the motion to approve the minutes from January 25, 2022. Mandy Freeman seconded the motion, and the vote carried unanimously.

3. **Discuss and Consider Approval of the Financial Reports Ending January 31, February 28, and March 31, 2022.**
Executive Director Bonnie Hunter summarized the EDC financials with the Reserve Account at $1.4M, $2M in the cash account, and approximately $66,000 in the USDA Revolving Loan account.
Michael Glas moved to approve the financials ending January, February, and March. Seconded by Joe Shipman, the motion carried unanimously.

4. **Date and Time for Upcoming Meeting(s)**
The next meeting is set for Thursday, May 26 at 9:00 a.m.

5. **Comments and Reports:**
a. Citizens' Comments [Citizens will be allotted three (3) minutes to comment or speak to the board.] – None.

b. City Manager - Howdy Lisenbee noted that the city has started the Capital Projects for Downtown Improvements. He summarized that an advisory committee has been formed for this project. The intention is to develop a master plan for downtown improvements based on what we want downtown to be in the coming years. The advisory committee held their first meeting last Friday. Some of the biggest talking points were: (1) dissatisfaction with the current condition of the buildings downtown; and (2) wishing that the City could force people to improve the condition of their buildings. Manager Lisenbee noted that the City cannot force the improvement of buildings unless there is a safety issue. He further noted that the city currently has two downtown buildings with open "code cases." Some of the committee conversation also focused on the other side of Bonham Alley, where the Farmer's Market currently is. During the first round of work, improvements to the parking lot will take place to allow for more downtown parking. Sidewalk repairs were also discussed, with hopes of applying for a TxDOT Sidewalk Grant during 2023.

Manager Lisenbee provided an update on the Bloomfield Housing project, noting that most of their civil plan designs have been completed. They hope to break ground in the coming months. Phase I will include approximately one hundred homes.

A second housing development will be going in on Pritchard Road. He also added that reconstruction of Washington Street from Live Oak to Culver is in the budget.

Work will begin on the parks and splash pad in early May. The splash pad is expected to be completed in early fall.

c. Legal Counsel – No updates currently.

d. Ex-Officio Member(s) – No updates currently.

e. Board Members - No updates currently.

f. Executive Director – Bonnie Hunter noted that she, along with Howdy Lisenbee and Mayor Williams attended the Grand Opening of the NEXII facility in Hazelton, PA. It was impressive.

On April 12, the County Commissioners approved Tax Abatements for NEXUS-2, OEP/Zurn Pex, and HUARU Pipe at fifty percent (50%) for ten years.

6. **Executive Session [The CEDC Board of Directors will adjourn into executive session in accordance with the Texas government Code, Sections 551.071; 551.072; 551.074 and 551.087].**

a. Section 551.071-consultation with attorney

b. Section 551.072-deliberations regarding real property; land/building

c. Section 551.074-personnel matters

d. Section 551.087-deliberations regarding economic development negotiations

The CEDC Board of Directors did not have a need to hold an executive session.

7. **Reconvene to Open Session** – No Executive Session

8. **Announcement of Executive Session [The Board will announce any action to be taken resulting from executive session.]** – N/A

9. Adjournment:

With no further business, Joe Shipman moved to adjourn the meeting. Seconded by Stan McKee, the motion carried unanimously. President Scott Ward adjourned the meeting at 9:58 a.m.

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Scott Ward, President

_____ _____

Molly Jacobsen
Director of Administrative Services

Date

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 4 / SUBJECT: Discuss and Consider Approval of the Financial Reports Ending April 30, 2022

BACKGROUND: Receipt of financial reports ending April 30, 2022.

Account summaries and financial statements have been included for the month ending April 30, 2022.

✓ APRIL
- Account Summary ending April 30, 2022
- Financial Statements through April 30, 2022
- Summary of Invoices for Payment – May
  - $13,923.92

✓ MAY
- Sales tax for the month of May
  - CEDC – $64,714.63 – up $1,664.33 from 2021
  - City – $129,429.26
- Detailed analysis reports will not be available until next month

DISCUSSION/CONCLUSION:

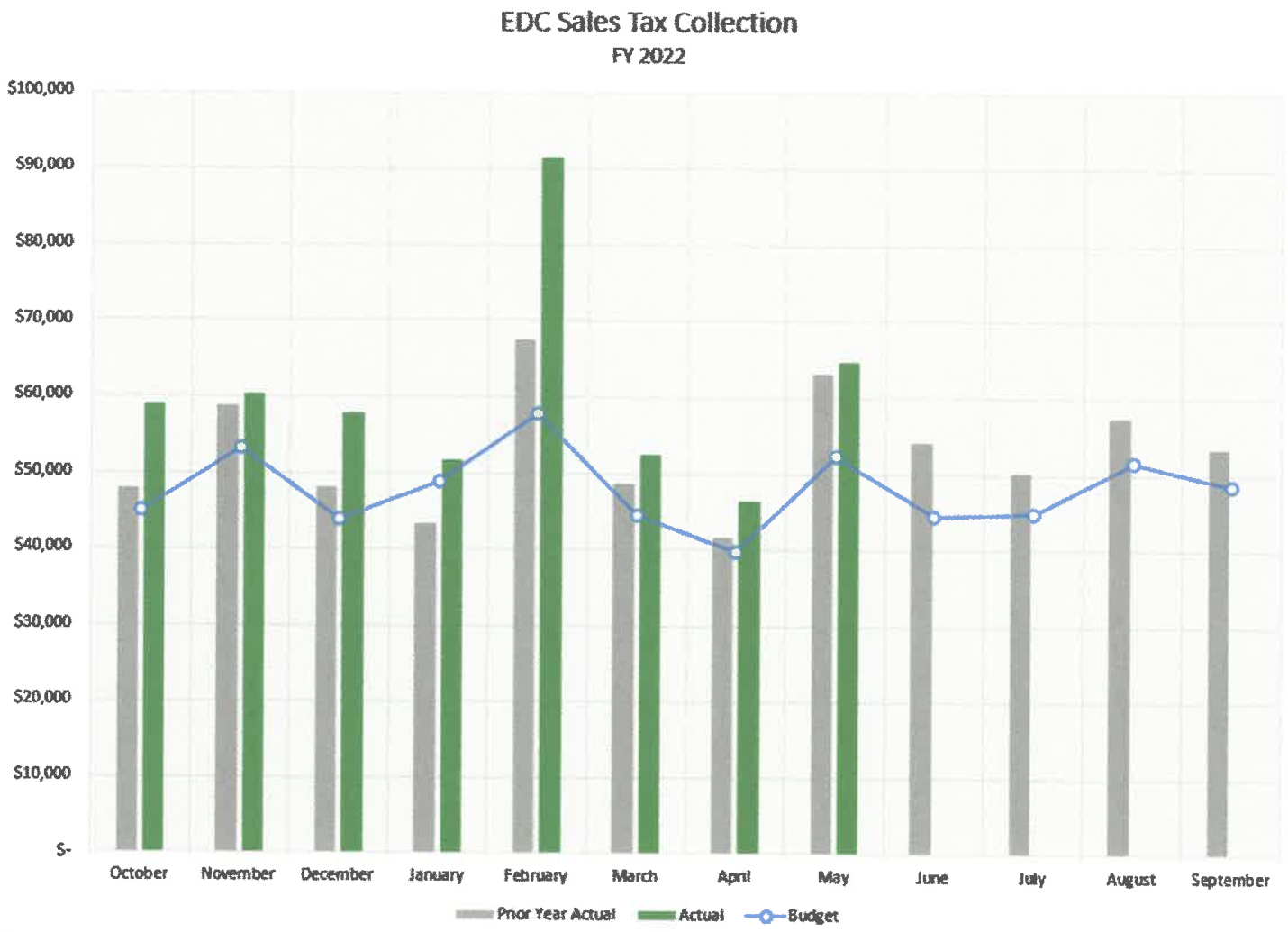
RECOMMENDATION: Approve the financial reports as presented.

FINANCIAL CERTIFICATION: $13,923.92

Bonnie Hunter

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: Financials ending April 30, 2022



Sales Tax Collection FY 2022

May 2022	**$64,714.63**
Prior Year	$63,050.30

Sales Tax represents spending two months prior - March 2022 -

Current Annual Budget	$ 575,000.00

Month	Percentage	Budget	Prior Year Actual	Actual	Variance	Monthly Percentage	Cumulative Budget	Cumulative Actual	Cumulative Variance	Cumulative Percentage	Projected Allocation	Projected Variance
October	7.8%	$ 44,989.06	$ 47,910.60	$ 58,887.06	$ 13,898.00	30.9%	$ 44,989.06	$ 58,887.06	$ 13,898.00	30.9%	$ 58,887.06	$ 13,898.00
November	9.3%	$ 53,336.66	$ 58,844.44	$ 60,248.09	$ 6,911.43	13.0%	$ 98,325.72	$119,135.15	$ 20,809.43	21.2%	$ 60,248.09	$ 6,911.43
December	7.7%	$ 44,003.78	$ 48,158.54	$ 57,753.19	$ 13,749.41	31.2%	$ 142,329.50	$176,888.33	$ 34,558.84	24.3%	$ 57,753.19	$ 13,749.41
January	8.5%	$ 48,874.06	$ 43,383.46	$ 51,712.15	$ 2,838.10	5.8%	$ 191,203.55	$228,600.49	$ 37,396.93	19.6%	$ 51,712.15	$ 2,838.10
February	10.1%	$ 57,884.22	$ 67,599.64	$ 91,420.59	$ 33,536.38	57.9%	$ 249,087.77	$320,021.08	$ 70,933.31	28.5%	$ 91,420.59	$ 33,536.38
March	7.7%	$ 44,481.44	$ 48,651.73	$ 52,466.81	$ 7,985.36	18.0%	$ 293,569.21	$372,487.89	$ 78,918.67	26.9%	$ 52,466.81	$ 7,985.36
April	6.9%	$ 39,729.08	$ 41,580.96	$ 46,478.59	$ 6,749.51	17.0%	$ 333,298.29	$418,966.47	$ 85,668.18	25.7%	$ 46,478.59	$ 6,749.51
May	9.1%	$ 52,351.88	$ 63,050.30	$ 64,714.63	$ 12,362.74	23.6%	$ 385,650.18	$483,681.10	$ 98,030.92	25.4%	$ 64,714.63	$ 12,362.74
June	7.7%	$ 44,478.35	$ 54,181.38	$ -	$ -	0.0%	$ 430,128.53	$ -	$ -	0.0%	$ 44,478.35	$ -
July	7.8%	$ 44,929.33	$ 50,292.43	$ -	$ -	0.0%	$ 475,057.86	$ -	$ -	0.0%	$ 44,929.33	$ -
August	9.0%	$ 51,528.50	$ 57,465.84	$ -	$ -	0.0%	$ 526,586.36	$ -	$ -	0.0%	$ 51,528.50	$ -
September	8.4%	$ 48,413.03	$ 53,509.33	$ -	$ -	0.0%	$ 574,999.39	$ -	$ -	0.0%	$ 48,413.03	$ -
Total	100.0%	$ 574,999.39	$ 634,628.66	$483,681.10	$ 98,030.92	197.4%					$ 673,030.31	$ 98,030.92

- MAY 2022 -

EDC Sales Tax Collection $64,714.63

REFLECTS FEBRUARY SALES 2021 $63,050.30

CITY Sales Tax $129,429.25

Prior Year Tax $126,100.60

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 5 / SUBJECT: Discuss Date and Time for Upcoming Meeting(s)

BACKGROUND: The next meeting of the Board of Directors is set for Wednesday, June 22 at 9 a.m.

DISCUSSION/CONCLUSION:

RECOMMENDATION:

FINANCIAL CERTIFICATION: None

Bonnie Hunter

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: None

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 6 / SUBJECT: Comments and Reports

BACKGROUND: At this time, the Board will hear comments and reports.

a. Citizens' Comments [During this time, a three (3) minute time-period to comment or speak to the board will be allotted.]
b. Ex-officio member(s)
c. City Manager
d. Legal Counsel
e. Board Members; and
f. Executive Director

DISCUSSION/CONCLUSION:

RECOMMENDATION:

FINANCIAL CERTIFICATION: N/A

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: None

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 7 / SUBJECT: Executive Session (The CEDC Board of Directors will adjourn into executive session in accordance with the Texas Government Code, Sections 551.071; 551.072; 551.074 and 551.087)

BACKGROUND: **At this time, the Board of Directors will convene into executive session in accordance with the Texas Government Code, Sections 551.071; 551.072, 551.074 and 551.087.** *Project Gray Wolf; and Revolving Loan Fund*

1. **Consultation with Attorney.** Tex. Gov't Code, Section 551.071

2. **Deliberations regarding real property.** Tex. Gov't Code, Section 551.072
   Deliberate the purchase, exchange, lease, or value of real property if deliberation in an open meeting would have a detrimental effect on the position of the governmental body in negotiations with a third person,

3. **Personnel matters.** Tex. Gov't. Code, Section 551.074
   Deliberate the appointment, employment, evaluation, reassignment, duties, discipline or dismissal of a public officer or employee.

4. **Deliberations regarding economic development negotiations**.
   Tex. Gov't. Code, Section 551.087
   Discuss or deliberate regarding commercial or financial information that the governmental body has received from a business prospect that the governmental body seeks to have locate, stay or expand in or near the territory of the governmental body and with which the governmental body is conducting economic development negotiations; or (2) to deliberate the offer of a financial or other incentive to a business prospect described by Subdivision (1) in accordance with V.T.C.A. Government Code, Section 551.087.

DISCUSSION/CONCLUSION:

RECOMMENDATION:

FINANCIAL CERTIFICATION:

Bonnie Hunter

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: Executive Session

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEMS 8-9 / SUBJECT: Reconvene to Open Session and Announcement of Executive Session

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BACKGROUND: The Board will reconvene and announce any action to be taken from executive session.

1. Consultation with attorney.
2. Discussion and possible action taken regarding real property.
3. Discussion and possible action regarding personnel matters.
4. Discussion and possible action taken regarding economic development negotiations.

Bonnie Hunter

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: Announcement of Executive Session

COMMERCE ECONOMIC DEVELOPMENT CORPORATION
May 26, 2022

ITEM 10 / SUBJECT: Adjournment

BACKGROUND: The meeting will adjourn if there is no further action or discussion.

DISCUSSION/CONCLUSION:

RECOMMENDATION:

Bonnie Hunter, Executive Director

ASSOCIATED INFORMATION: Adjournment